

SENATE No. 1966

The Commonwealth of Massachusetts

PRESENTED BY:

Peter J. Durant

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to property sales by nonprofit organizations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>4/1/2025</i>

SENATE No. 1966

By Mr. Durant, a petition (accompanied by bill, Senate, No. 1966) of Peter J. Durant and Bruce E. Tarr relative to certain payments in property sales by nonprofit organizations. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2783 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to property sales by nonprofit organizations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The first paragraph of section 2C of chapter 59 of the General Laws, as
2 appearing in the 2020 Official Edition, is hereby amended by inserting after the first sentence the
3 following sentence:- Prior to executing the purchase and sale agreement for the sale of land or
4 property that would result in the grantee making a payment in lieu of taxes pursuant to this
5 section, the seller, except in cases where the seller is the United States, the commonwealth, or a
6 county, city or town, or any instrumentality thereof, shall provide the grantee with a written
7 notice identifying the grantee’s obligation to make such payment.

8 SECTION 2. Said section 2C of said chapter 59, as so appearing, is hereby further
9 amended by inserting after the word “later”, in line 33, the following words:- ; provided,
10 however, that if the seller, except in cases where the seller is the United States, the

11 commonwealth, or a county, city or town, or any instrumentality thereof, fails to provide the
12 grantee with written notice identifying the grantee's obligation to make payment under this
13 section prior to executing the purchase and sale agreement, such amounts shall be paid by the
14 seller.